

503.1 - Student Conduct

Adoption Date: 06/22/2021

History: 3/22/22 (reviewed), 2/14/23 (reviewed), 12/12/23 (updated), 2/13/24 (reviewed), 3/11/25 (reviewed), 2/10/26 (reviewed)

The board believes inappropriate student conduct causes material and substantial disruption to the school environment, interferes with the rights of others, or presents a threat to the health and safety of students, employees, and visitors on school premises. Appropriate classroom behavior allows teachers to communicate more effectively with students.

Students will conduct themselves in a manner fitting to their age level and maturity and with respect and consideration for the rights of others while on school district property or on property within the jurisdiction of the school district; while on school owned and/or operated school or chartered vehicles; while attending or engaged in school activities; and while away from school grounds if misconduct will directly affect the good order, efficient management and welfare of the school district. Consequences for the misconduct will be fair and developmentally appropriate in light of the circumstances.

Students who fail to abide by this policy, and the administrative regulations supporting it, may be disciplined for conduct which disrupts or interferes with the education program; conduct which disrupts the orderly and efficient operation of the school district or school activity; conduct which disrupts the rights of other students to participate in or obtain their education; conduct that is violent or destructive; or conduct which interrupts the maintenance of a disciplined atmosphere. Disciplinary measures include, but are not limited to, removal from the classroom, detention, suspension, probation, and expulsion.

Removal from the classroom means a student is ~~sent to the building principal's office~~ taken out of their regular learning environment and sent to an alternative location. Removal of students from the classroom for violent or nonviolent disruptions shall occur in accordance with the districts "Disruptive Behavior" policy 503.11. Removal of students from the classroom for reasons other than violent or nonviolent disruption shall occur at the discretion of the licensed staff member in charge of the classroom. ~~It is within the discretion of the person in charge of the classroom to remove the student.~~

Detention means the student's presence is required during non-school hours for disciplinary purposes. The student can be required to appear prior to the beginning of the school day, after school has been dismissed for the day, or on a non-school day. Whether a student will serve detention, and the length of the detention, is within the discretion of the licensed employee or the building principal, disciplining the student.

In-school suspension means the student will attend school but will be temporarily isolated from one or more classes while under supervision. An in-school suspension will not exceed ten consecutive school days.

Out-of-school suspension means the student is removed from the school environment, which includes school classes and activities. An out-of-school suspension will not exceed ten consecutive school days unless due process is provided as required by federal and state law. A restriction from school activities means a student will attend school and classes and practice but will not participate in school activities.

Probation means a student is given a conditional suspension of a penalty for a definite period of time in addition to being reprimanded. The conditional suspension will mean the student must meet the conditions and terms for the suspension of the penalty. Failure of the student to meet these conditions and terms will result in immediate reinstatement of the penalty.

Expulsion means an action by the board to remove a student from the school environment, which includes, but is not limited to, classes and activities, for a period of time set by the board.

This policy is not intended to address the use of therapeutic classrooms or seclusion rooms for students.

Discipline of special education students, including suspensions and expulsions, will comply with the provisions of applicable federal and state laws.

It is the responsibility of the superintendent or designee, in conjunction with the principal, to develop administrative regulations regarding this policy. The guidance is maintained in the district Comprehensive Behavior Approach (CBA).

Legal Reference:

Goss v. Lopez, 419 U.S. 565 (1975).

Brands v. Sheldon Community School District, 671 F. Supp. 627 (N.D. Iowa 1987). Sims v. Colfax Comm. School Dist., 307 F. Supp. 485 (Iowa 1970).

Bunger v. Iowa High School Athletic Assn., 197 N.W.2d 555 (Iowa 1972).

Board of Directors of Ind. School Dist. of Waterloo v. Green, 259 Iowa 1260, 147 N.W.2d 854 (1967).

Iowa Code §§ 279.8; 282.3, 282.4, 282.5; 708.1.

281 I.A.C. 12.3(6)

Cross Reference:

603.3 Special Education

903.5 Distribution of Materials

903.5R1 Distribution of Materials - Regulation